

HOUSE No. 1409

The Commonwealth of Massachusetts

PRESENTED BY:

Todd M. Smola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to MassHealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>1/16/2025</i>

HOUSE No. 1409

By Representative Smola of Warren, a petition (accompanied by bill, House, No. 1409) of Todd M. Smola for legislation to further regulate health care payments to nursing facilities. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3588 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to MassHealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13C of chapter 118E of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the first paragraph the following
3 paragraph:-

4 The executive office shall not subject a nursing facility, as defined in 101 CMR 206.02,
5 to a downward adjustment of its health care payments based on the failure of the facility to meet
6 a specified number of hours per patient per day; provided, however, that nursing homes that have
7 a Medicaid utilization rate of 80% or higher, as determined by EOHHS, shall not be subject to
8 the downward adjustment of its healthcare payments.

9 SECTION 2. The executive office of health and human services shall promulgate or
10 amend any regulations necessary to implement this act.